

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE BILL 3662

By: Dempsey of the House

5 and

6 **Frix** of the Senate

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10 AS INTRODUCED

11 An Act relating to motor vehicles; amending 47 O.S.
12 2021, Section 1202, which relates to maintenance and
13 operations of fixed facilities; limiting types of
14 roads for certain enforcement; modifying area of
15 enforcement around certain fixed facilities; and
16 providing an effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 47 O.S. 2021, Section 1202, is
19 amended to read as follows:

20 Section 1202. A. The Department of Transportation, the
21 Oklahoma Turnpike Authority and the Corporation Commission may enter
22 into interagency agreements concerning the equipment, maintenance
23 and operations of fixed facilities.

1 B. The Department of Transportation, the Authority and the
2 Commission shall endeavor to electronically upgrade weigh stations
3 as practical to minimize the duplication of inspections for
4 compliant commercial motor vehicles and motor carriers.

5 C. The Commission shall operate all current and future ports of
6 entry weigh stations eighteen (18) to twenty (20) hours a day and
7 seven (7) days a week upon the availability of funds.

8 D. The Commission shall continue to conduct roadside
9 enforcement in the general area where a fixed facility is planned
10 but no fixed facility currently exists until a fixed facility is
11 located in the general area or July 1, 2016, whichever is earlier.

12 E. When a fixed facility is located in the general area,
13 Commission motor carrier and commercial motor vehicle enforcement
14 shall be limited to the fixed facility and ~~a radius surrounding the~~
15 state and U.S. highways within a certain distance from the facility.
16 If the fixed facility is a weigh station, as defined in Section 1201
17 of this title, ~~the applicable radius shall be seven (7) miles. If~~
18 ~~the fixed facility is or~~ a port of entry weigh station, as defined
19 in Section 1201 of this title, the applicable ~~radius~~ area of
20 enforcement shall be ~~twenty-five (25)~~ state and U.S. highways five
21 (5) highway miles from the fixed facility.

22 F. The Commission may assist in roadside enforcement in a joint
23 effort at the request of the Oklahoma Highway Patrol.

1 G. The Commission is authorized to conduct audits, reviews,
2 investigations, inspections or other enforcement actions by
3 enforcement officers provided those activities are within the scope
4 of the Commission's jurisdiction and are not conducted as roadside
5 enforcement in accordance with the provisions of the Oklahoma Weigh
6 Station Act of 2012.

7 H. The Commission may enter into interagency cooperative
8 agreements with other state or federal agencies to jointly enforce
9 federal and state laws or rules.

10 I. North American Standard Inspections shall be conducted only
11 by individuals holding certification in the level or classification
12 of inspection being conducted.

13 SECTION 2. This act shall become effective November 1, 2026.

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15 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
16 OVERSIGHT, dated 03/03/2026 - DO PASS, As Coauthored.